

SENATE No. 3221

Senate, July 23, 2026 -- Text of amendment (495) (offered by Senator Crighton) to the Ways and Means amendment (Senate, No. 3178) to the House Bill relative to economic development in the commonwealth.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 by inserting after section 3A the following 2 sections:-

2 “SECTION 3B. Section 7 of chapter 4 of the General Laws, as appearing in the 2024
3 Official Edition, is hereby amended by striking out the sixtieth clause, and inserting in place
4 thereof the following clause:- “Sixtieth, “Age of criminal majority” shall mean the age of 19.”

5 SECTION 3C. Section 167 of chapter 6 of the General Laws, as appearing in the 2024
6 Official Edition, is hereby amended by striking out, in line 38, 40 and 41, each time it appears,
7 the figure “18” and inserting in place thereof, in each instance, the following words:- “criminal
8 majority”; and

9 by inserting after section 38 the following section:-

10 SECTION 38A. Section 24 of chapter 37 of the General Laws, as appearing in the 2024
11 Official Edition, is hereby amended by striking out in line 14 the number “18” and inserting in
12 place thereof the following words:- criminal majority.”; and

13 by inserting after section 60 the following section:-

“SECTION 60A. Section 98F of chapter 41 of the General Laws, as amended by section 126 of chapter 102 of the acts of 2026, is hereby amended by striking out, in clause (iv) of the last sentence, the words “18 years of age” and inserting in place thereof the following words:- the age of criminal majority.”; and

by inserting after section 106 the following 5 sections:-

“SECTION 106A. Section 32H of chapter 94C, as so appearing, is hereby amended by striking out, in line 34 and 35, the words “18 years of age or older” and inserting in place thereof the following words:- “who has attained the age of criminal majority.”

SECTION 106B. Said section 32H of said chapter 94C, as so appearing, is hereby further amended by striking out, in line 36, the figure “18” and inserting in place thereof the following words:- “the age of criminal majority”

SECTION 106C. Section 32M of said chapter 94C, as so appearing , is hereby amended by striking out, in line 1, the word “eighteen” and inserting in place thereof the following words:- “criminal majority”

SECTION 106D. Said section 32M of said chapter 94C, as so appearing, is hereby amended by striking out in line 6 the figure “18” and inserting in place thereof the following words:- “criminal majority”

SECTION 106E. Section 36 of said chapter 94C, as so appearing, is hereby amended by striking out, in line 6 and 7, the words “his eighteenth birthday” and inserting in place thereof the following words:-the age of criminal majority.”; and

by inserting after section 109 the following 36 sections:-

35 “SECTION 109A. Section 52 of chapter 119 of the General Laws, as so appearing, is
36 hereby amended by striking out, in the definition of “delinquent child,” the figure “18” and
37 inserting in place thereof the following words:- “the age of criminal majority”.

38 SECTION 109B. Said section 52 of said chapter 119, as so appearing, is hereby further
39 amended by striking out, in the definition of “youthful offender,” the figure “18” and inserting in
40 place thereof the following words:- “the age of criminal majority”.

41 SECTION 109C. Section 54 of said chapter 119, as so appearing, is hereby amended by
42 striking out, in line 2, the words “18 years of age” and inserting in place thereof the following
43 words:- “the age of criminal majority”.

44 SECTION 109D. Said section 54 of said chapter 119, as so appearing, is hereby further
45 amended by striking out, in line 21, the figure “18” and inserting in place thereof the following
46 words:- “the age of criminal majority”.

47 SECTION 109E. Section 58 of said chapter 119, as so appearing, is hereby amended by
48 striking out, in lines 8 to 12, inclusive, the words “that any such probation may be imposed until
49 such child reaches age eighteen or age nineteen in the case of a child whose case is disposed of
50 after he has attained his eighteenth birthday or age 20 in the case of a child whose case is
51 disposed of after he attains his nineteenth birthday”, and inserting in place thereof the following
52 words:- “that any such probation may, in the case of an offense that occurred prior to the child’s
53 eighteenth birthday, be imposed until such child reaches age 18, or 19 in the case of a child
54 whose case is disposed of after the child has attained the child’s eighteenth birthday, or age 20 in
55 the case of a child whose case is disposed of after the child attains the child’s nineteenth
56 birthday. In the case of an offense that occurred on or after the child’s eighteenth birthday, such

57 probation may be imposed until such child reaches age 19, or age 20 in the case of a child whose
58 case is disposed of after the child has attained the child's nineteenth birthday, or age 21 in the
59 case of a child whose case is disposed of after the child attains the child's twentieth birthday."

60 SECTION 109F. Said section 58 of said chapter 119, as so appearing, , is hereby further
61 amended by inserting after the words "attains the age of eighteen", in lines 26 and 27, the
62 following words:- "in a case where the offense occurred prior to the child's eighteenth birthday."

63 SECTION 109G. Said section 58 of said chapter 119as so appearing, is hereby further
64 amended by inserting after the word "birthday", in line 30, inclusive, the following sentence:-
65 "In a case where the offense occurred on or after the child's eighteenth birthday, the probationary
66 or commitment period shall not be for a period longer than until such child attains the age of
67 nineteen.

68 SECTION 109H. Said section 58 of said chapter 119, as so appearing, , is hereby
69 amended by striking out, in line 79, the word "eighteenth" and inserting in place thereof the
70 following words:- "nineteenth"

71 SECTION 109I. Said section 58 of said chapter 119, as so appearing, is hereby further
72 amended by striking out the words "the Massachusetts Correctional Institution, Cedar Junction,
73 prior to his eighteenth birthday", in lines 78 to 79, and inserting in place thereof the following
74 words:- "any prison owned, operated, administered or subject to the control of the department of
75 correction prior to his nineteenth birthday."

76 SECTION 109J. Said section 58 of said chapter 119, as so appearing, is hereby further
77 amended by striking out, in lines 97 to 99, inclusive, the words "until such child attains his
78 eighteenth birthday or his nineteenth birthday in the case of a child whose case is disposed of

after he has attained his eighteenth birthday” and inserting in place thereof the following words:-
“until such child attains their nineteenth birthday or their twentieth birthday in the case of a child
whose case is disposed of after they have attained their nineteenth birthday”.

SECTION 109K. Section 60A of said chapter 119, as so appearing, is hereby amended by
striking out, in line 17, the words “and eighteenth birthdays” and inserting in place thereof the
following words:- “birthday and the age of criminal majority”.

SECTION 109L. Said section 60A of said chapter 119, as so appearing, is hereby further
amended by striking out, in line 20, the words, “been age 18 older” and inserting in place
thereof the following words:- “attained the age of criminal majority”.

SECTION 109M. Said section 60A of said chapter 119, as so appearing, , is hereby
further amended by striking out, in line 22, the words “were age 18 or older” and inserting in
place thereof the following words:- “had attained the age of criminal majority”.

SECTION 109N. Section 63A of said chapter 119, as so appearing, is hereby amended by
striking out, in line 1, the words “is 19 years of age” and inserting in place thereof the following
words:- “has attained the age of criminal majority”.

SECTION 109O. Said section 63A of said chapter 119, as so appearing, is hereby
amended by striking out, in line 2, the figure “18” and inserting in place thereof the following
words:- “criminal majority”.

SECTION 109P. Section 65 of said chapter 119, as so appearing, is hereby amended by
striking out, in line 2, the words “18 years of age” and inserting in place thereof the following
words:- “the age of criminal majority”.

100 SECTION 109Q. Section 66 of said chapter 119, as so appearing, is hereby amended by
101 striking out, in lines 3 and 5, each time they appear, the words “18 years of age” and inserting in
102 place thereof, in each instance, the following words:- “the age of criminal majority”.

103 SECTION 109R. Section 67 of said chapter 119, as so appearing, is hereby amended by
104 striking out in, in lines 1, 17, and 29, each time they appear, the words “18 years of age” and
105 inserting in place thereof, in each instance, the following words:- “the age of criminal majority”.

106 SECTION 109S. Section 68 of said chapter 119, as so appearing, is hereby amended by
107 striking out, in line 2, the figure “18” and inserting in place thereof the following words:-
108 “criminal majority”.

109 SECTION 109T. Said section 68 of said chapter 119, as so appearing, is hereby further
110 amended by striking out, in line 34, the words “18 years of age” and inserting in place thereof the
111 following words:- “the age of criminal majority”.

112 SECTION 109U. Section 68A of said chapter 119, as so appearing, is hereby amended by
113 striking out, in line 1, the words “18 years of age” and inserting in place thereof the following
114 words:- “the age of criminal majority”.

115 SECTION 109V. Section 70 of said chapter 119, as so appearing, is hereby amended by
116 striking out, in line 2, the words “18 years of age” and inserting in place thereof the following
117 words:- “the age of criminal majority”.

118 SECTION 109W. Section 72 of said chapter 119, as so appearing, is hereby amended by
119 striking out, in line 2 and 3, the words “their eighteenth birthday” and inserting in place thereof
120 the following words:- “the age of criminal majority”.

121 SECTION 109X. Said section 72 of said chapter 119, as so appearing, is hereby further
122 amended by striking out, in line 9, the word “ twentieth” and inserting in place thereof the
123 following words:-“twenty-first”

124 SECTION 109Y. Said section 72 of said chapter 119 of the General Laws, as so
125 appearing, is hereby further amended by striking out, the second paragraph and inserting in place
126 thereof the following paragraph:-

127 “If a child commits an offense prior to attaining the age of criminal majority, and is not
128 apprehended until between such child’s attainment of the age of criminal majority and the
129 subsequent birthday, the court shall deal with such child in the same manner as if the child has
130 not attained the age of criminal majority and all provisions and rights applicable to a child under
131 18 shall apply to such child.”

132 SECTION 109Z. Said section 72 of said chapter 119, as so appearing, is hereby further
133 amended by striking out, in line 18, the words “their eighteenth birthday” and inserting in place
134 thereof the following words:- “the age of criminal majority”.

135 SECTION 109AA. Section 72A of said chapter 119, as so appearing, is hereby amended
136 by striking out, in line 2 and 3, the words “his eighteenth birthday, and is not apprehended until
137 after his nineteenth birthday,” and inserting in place thereof the following words:- “attaining the
138 age of criminal majority, and is not apprehended until after their subsequent birthday”.

139 SECTION 109BB. Section 72B of said chapter 119, as so appearing, is hereby amended
140 by striking out, in lines 1 and 2, 7 and 8, 25 and 31, each time they appear, the words “his
141 eighteenth birthday” and inserting in place thereof, in each instance, the following words:-
142 “attaining the age of criminal majority”.

143 SECTION 109CC. Section 74 of said chapter 119, as so appearing, is hereby amended by
144 striking out, in line 3 and 4, the words “his eighteenth birthday” and inserting in place thereof the
145 following words:-“attaining the age of criminal majority”.

146 SECTION 109DD. Said section 74 of said chapter 119, as so appearing, is hereby further
147 amended by striking out, in line 10, the words “18 years of age” and inserting in place thereof the
148 following words:- “the age of criminal majority”.

149 SECTION 109EE. Said section 74 of said chapter 119, as so appearing, is hereby further
150 amended by striking out, in line 14, the figure “18” and inserting in place thereof the following
151 words:- “criminal majority”.

152 SECTION 109FF. Section 84 of said chapter 119, as so appearing, is hereby amended by
153 striking out, in line 12 and 13, the words “eighteen (or nineteen) years of age” and inserting in
154 place thereof the following words:- “the age of criminal majority (or one year older)”.

155 SECTION 109GG. Section 89 of said chapter 119, as so appearing, is hereby amended by
156 striking out, in line 25, the figure “18” and inserting in place thereof the following words:-
157 “criminal majority”.

158 SECTION 109HH. Section 15 of chapter 120 of the General Laws, as so appearing, is
159 hereby amended by striking out in lines 3 and 4, each time it appears, the figure “18” and
160 inserting in place thereof, in each instance, the following words:- “the age of criminal majority”.

161 SECTION 109II. Section 21 of said chapter 120, as so appearing, is hereby amended by
162 striking out, in lines 7, 9 and 10, each time it appears, the word “conviction” and inserting in
163 place thereof, in each instance, the following word:- “adjudication”.

164 SECTION 109JJ. Said section 21 of said chapter 120, as so appearing, is hereby further
165 amended by striking out, in line 17, the words “18 years of age” and inserting in place thereof the
166 following words:- “the age of criminal majority.”; and

167 by inserting after section 137 the following 24 sections:-

168 “SECTION 137A. Section 2A of chapter 211D of the General Laws, as appearing in the
169 2024 Official Edition, is hereby amended by striking out, in line 106, the words “18 years of
170 age” and inserting in place thereof the following words:- “the age of criminal majority”.

171 SECTION 137B. Section 13 of chapter 250 of the General Laws, as so appearing, is
172 hereby amended by striking out, in line 3. the figure “18” and inserting in place thereof the
173 following words:- “criminal majority”.

174 SECTION 137C. Section 2 of chapter 258E of the General Laws, as so appearing, is
175 hereby amended by striking out, in line 7, the figure “18” and inserting in place thereof the
176 following words:- “criminal majority”.

177 SECTION 137D. Section 15A of chapter 265 of the General Laws, as so appearing, is
178 hereby amended by striking out, in line 24, the words “18 years of age or over” and inserting in
179 place thereof the following words:- “who has attained the age of criminal majority”.

180 SECTION 137E. Said section 15A of said chapter 265, as so appearing, is hereby
181 amended by striking out, in line 46, the words “is 18 years of age or over” and inserting in place
182 thereof the following words:- “has attained the age of criminal majority”.

183 SECTION 137F. Section 15B of said chapter 265, as so appearing, is hereby amended by
184 striking out, in line 24, the words “18 years of age or over” and inserting in place thereof the
185 following words:- “who has attained the age of criminal majority”.

186 SECTION 137G. Section 18 of said chapter 265, as so appearing, is hereby amended by
187 striking out, in line 26 and 27, the words “18 years of age or over” and inserting in place thereof
188 the following words:- “who has attained the age of criminal majority”.

189 SECTION 137H. Section 18B of said chapter 265, as so appearing, is hereby amended by
190 striking out, in line 41 and 42, the words “18 years of age or over” and inserting in place thereof
191 the following words:- “who has attained the age of criminal majority”.

192 SECTION 137I. Section 19 of said chapter 265, as so appearing, is hereby amended by
193 striking out, in line 23 and 24, the words “18 years of age or over” and inserting in place thereof
194 the following words:- “who has attained the age of criminal majority”.

195 SECTION 137J. Section 43 of said chapter 265, as so appearing, is hereby amended by
196 striking out, in lines 56 and 89, each time they appear, the words “18 years of age or over” and
197 inserting in place thereof, in each instance, the following words:- “who has attained the age of
198 criminal majority”.

199 SECTION 137K. Section 59 of said chapter 265, as so appearing, is hereby amended by
200 striking out, in line 19, the figure “18” and inserting in place thereof the following words:-
201 “criminal majority”.

202 SECTION 137L. Section 10 of chapter 269 of the General Laws, as amended by chapter
203 14 of the Acts of 2025, is hereby amended by striking out, in subsection (a) and subsection (m),

204 each time they appear, the words “18 years of age” and inserting in place thereof, in each
205 instance, the following words:- “who has attained the age of criminal majority”.

206 SECTION 137M. Section 10E of said chapter 269, as appearing in the 2024 Official
207 Edition, is hereby amended by striking out, in line 39 and 40, the words “18 years of age or over”
208 and inserting in place thereof the following words:- “who has attained the age of criminal
209 majority”.

210 SECTION 137N. Said section 10E of said chapter 269, as so appearing, is hereby further
211 amended by striking out, in line 41, the figure “18” and inserting in place thereof the following
212 words:- “the age of criminal majority”.

213 SECTION 137O. Section 10F of said chapter 269, as so appearing, is hereby amended by
214 striking out, in lines 4 and 28, each time they appear, the words “18 years of age or over” and
215 inserting in place thereof, in each instance, the following words:- “who has attained the age of
216 criminal majority”.

217 SECTION 137P. Said section 10F of said chapter 269, as so appearing, is hereby further
218 amended by striking out, in line 32, the figure “18” and inserting in place thereof the following
219 words:- “criminal majority”.

220 SECTION 137Q. Said section 10F of said chapter 269, as so appearing, is hereby further
221 amended by striking out, in line 50, the words “17 years of age or over” and inserting in place
222 thereof the following words:- “who has attained the age of criminal majority”.

223 SECTION 137R. Section 10G of said chapter 269, as so appearing, is hereby amended by
224 striking out, in lines 34 and 35, the words “18 years of age or over” and inserting in place thereof
225 the following words:- “who has attained the age of criminal majority”.

226 SECTION 137S. Section 87 of chapter 276 of the General Laws, as appearing in the 2024
227 Official Edition, is hereby amended by striking out, in line 7, the figure “18” and inserting in
228 place thereof the following words:-“criminal majority”.

229 SECTION 137T. Said section 87 of said chapter 276, as so appearing, is hereby further
230 amended by striking out, in lines 14 and 15, the words “was eighteen years of age or older” and
231 inserting in place thereof the following words:- “had attained the age of criminal majority”.

232 SECTION 137U. Section 89A of said chapter 276, as so appearing, is hereby amended by
233 striking out, in line 3, the figure “18” and inserting in place thereof the following words:-
234 “criminal majority”.

235 SECTION 137V. Section 89B of said chapter 276, as so appearing, is hereby amended by
236 striking out, in line 3, the words “are 18 to 24” and inserting in place thereof the following
237 words:- “have attained the age of criminal majority and are under 25”.

238 SECTION 137W. Section 100D of said chapter 276, as so appearing, is hereby amended
239 by striking out, in line 8, the figure “17” and inserting in place thereof the following words:-
240 “criminal majority”.

241 SECTION 137X. Section 6B of chapter 280 of the General Laws, as so appearing, is
242 hereby amended by striking out, in line 3, the words “18 years” and inserting in place thereof the
243 following words:- criminal majority.”; and

244 by inserting after section 155 following section:-

245 “SECTION 155A. No later than two years after the effective date of this act, the
246 department of youth services shall file a report with the Clerks of the Senate and House of
247 Representatives and the Senate and House committees on ways and means detailing the impact
248 of integrating eighteen year olds into the care and custody of the department of youth services;
249 including but not limited to (1) the number of eighteen year olds in department of youth services
250 custody and (2) the offenses committed.”; and

251 by adding the following section:-

252 “SECTION 166. Sections 3B; 3C; 38A; 60A; 109A to 109JJ, inclusive; and 137A-137X,
253 inclusive, shall take effect 1 year after the effective date of this act.”.